

STATE OF NEW YORK

7962--A

2025-2026 Regular Sessions

IN ASSEMBLY

April 16, 2025

Introduced by M. of A. R. CARROLL, LASHER -- read once and referred to the Committee on Racing and Wagering -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the racing, pari-mutuel wagering and breeding law, in relation to regulating sports betting and sports betting advertising campaigns

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 4 of section 1367 of the racing, pari-mutuel
2 wagering and breeding law, as amended by section 3 of part Y of chapter
3 59 of the laws of 2021, is amended to read as follows:

4 4. Except as otherwise provided by this article, the commission shall
5 have the authority to regulate sports pools and the conduct of sports
6 wagering under this article to the same extent that the commission regu-
7 lates other gaming. No casino or mobile sports wagering licensee shall
8 be authorized to operate a sports pool unless it has produced informa-
9 tion, documentation, and assurances concerning its financial background
10 and resources, including cash reserves, that are sufficient to demon-
11 strate that it has the financial stability, integrity, and responsibil-
12 ity to operate a sports pool. In developing rules and regulations appli-
13 cable to sports wagering, the commission shall examine the regulations
14 implemented in other states where sports wagering is conducted and
15 shall, as far as practicable, adopt a similar regulatory framework. The
16 commission shall promulgate regulations necessary to carry out the
17 provisions of this section, including, but not limited to, regulations
18 governing the:

19 (a) amount of cash reserves to be maintained by casinos and mobile
20 sports wagering licensees to cover winning wagers;

21 (b) acceptance of wagers on a series of sports events;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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(c) maximum wagers which may be accepted by a casino or mobile sports wagering licensee from any one patron ~~[on any one sports event]~~ which shall not exceed the sum of five thousand dollars during a twenty-four hour period;

(d) type of wagering tickets which may be used;

(e) method of issuing tickets;

(f) method of accounting to be used by casinos and mobile sports wagering licensees;

(g) types of records which shall be kept;

(h) use of ~~[credit and]~~ checks by authorized sports bettors;

(i) the process by which a casino may place a layoff bet;

(j) the use of global risk management;

(k) type of system for wagering; ~~[and]~~

(l) protections for a person placing a wager; and

(m) prohibition on certain advertisement practices including odds boosts or similar offers, including advertising that contains the phrases "bonus", "no sweat", "bonus bet", or any other similar term.

§ 2. Subdivisions 4 and 5 of section 1367-a of the racing, pari-mutuel wagering and breeding law, as added by section 4 of part Y of chapter 59 of the laws of 2021, are amended to read as follows:

4. (a) As a condition of licensure, each mobile sports wagering operator shall implement the following measures:

(i) limit each authorized sports bettor to one active account on their platform, and prevent anyone they know, or should have known to be a prohibited sports bettor from maintaining accounts or participating in any sports wagering offered by such mobile sports wagering operator;

(ii) adopt appropriate safeguards to ensure, to a reasonable degree of certainty, as defined by rules and regulations promulgated by the commission, that authorized sports bettors are physically located within the state when engaging in mobile sports wagering;

(iii) prohibit minors from participating in any sports wagering pursuant to rules and regulations promulgated by the commission;

(iv) when referencing the chances or likelihood of winning in advertisements or upon placement of a sports wager, make clear and conspicuous statements that are not inaccurate or misleading concerning the chances of winning and the number of winners;

(v) permit any authorized sports bettor to permanently close an account registered to such bettor, on any and all platforms supported by such mobile sports wagering operator, at any time and for any reason;

(vi) offer introductory procedures for authorized sports bettors, that shall be prominently displayed on the main page of such mobile sports wagering operator platform, that explain sports wagering;

(vii) implement measures to protect the privacy and online security of authorized sports bettors and their accounts;

(viii) offer all authorized sports bettors access to ~~[his or her]~~ such bettor's account history and account details;

(ix) ensure authorized sports bettors' funds are protected upon deposit and segregated from the operating funds of such mobile sports wagering operator and otherwise protected from corporate insolvency, financial risk, or criminal or civil actions against such mobile sports wagering operator;

(x) list on each website, in a prominent place, information concerning assistance for compulsive play in New York state, including a toll-free number directing callers to reputable resources containing further information, which shall be free of charge;

1 (xi) ensure no sports wagering shall be based on a prohibited sports
2 event;

3 (xii) permit account holders to establish self-exclusion gaming limits
4 on a daily, weekly, and monthly basis that enable the account holder to
5 identify the maximum amount of money an account holder may deposit
6 during such period of time;

7 (xiii) when an account holder's lifetime deposits exceed two thousand
8 five hundred dollars, the mobile sports wagering operator shall prevent
9 any wagering until the patron immediately acknowledges that the account
10 holder has met the deposit threshold and may elect to establish respon-
11 sible gaming limits or close the account, and the account holder has
12 received disclosures from the mobile sports wagering operator concerning
13 problem gambling resources. Once a patron has reached their lifetime
14 deposit, such patron shall annually make the acknowledgement required by
15 this paragraph;

16 (xiv) maintain a publicly accessible internet page dedicated to
17 responsible play, a link to which must appear on the mobile sports
18 wagering operator's website and in any mobile application or electronic
19 platform on which a bettor may place wagers. The responsible play page
20 shall include: a statement of the mobile sports wagering operator's
21 policy and commitment to responsible gaming; information regarding, or
22 links to information regarding, the risks associated with gambling and
23 the potential signs of problem gaming; the availability of self-imposed
24 responsible gaming limits; a link to a problem gaming webpage maintained
25 by the office of addiction services and supports; and such other infor-
26 mation or statements as the commission may require by rule; ~~and~~

27 (xv) prohibit authorized sports bettors from placing more than five
28 deposits in such bettor's account during a twenty-four hour period;

29 (xvi) prohibit authorized sports bettors from wagering more than five
30 thousand dollars in a twenty-four hour period;

31 (xvii) prohibit authorized sports bettors from placing proposition
32 bets, defined as a wager on a specific event or statistical outcome
33 within a game that does not directly depend on the game's final score
34 or result; and

35 (xviii) submit annually a problem gaming plan that was approved by the
36 commission in consultation with the office of addiction services and
37 supports that includes: the objectives of and timetables for implement-
38 ing the plan; identification of the persons responsible for implementing
39 and maintaining the plan; procedures for identifying users with
40 suspected or known problem gaming behavior; procedures for providing
41 information to users concerning problem gaming identification and
42 resources; procedures to prevent gaming by minors and self-excluded
43 persons; and such other problem gaming information as the commission may
44 require by rule.

45 (b) No entity shall directly or indirectly operate an unlicensed
46 sports wagering platform in the state of New York, or advertise or
47 promote such unlicensed platform to persons located in the state of New
48 York.

49 (c) Mobile sports wagering licensees shall not offer any sports wager-
50 ing based on any prohibited sports event.

51 (d) Mobile sports wagering licensees shall not permit sports wagering
52 by anyone they know, or should have known, to be a prohibited sports
53 bettor.

54 (e) Advertisements for contests and prizes offered by a mobile sports
55 wagering operator shall ~~not target prohibited~~ not:

56 (i) target sports bettors, minors, or self-excluded persons;

(ii) include information about odds boosts or similar offers, including advertising that contains the phrase "bonus", "no sweat", "bonus bet", or any other similar term;

(iii) provide information on how to place a sports wager or how sports wagers work;

(iv) occur between the hours of eight a.m. and ten p.m. local time; and

(v) occur during live sports events.

(f) Mobile sports wagering operators shall develop and prominently display procedures on the main page of such mobile sports wagering operator's platform for the filing of a complaint by an authorized sports bettor against such mobile sports wagering operator. An initial response shall be given by such mobile sports wagering operator to such bettor filing the complaint within forty-eight hours. A complete response shall be given by such mobile sports wagering operator to such bettor filing the complaint within ten business days. An authorized sports bettor may file a complaint alleging a violation of the provisions of this article with the commission.

(g) Mobile sports wagering licensees shall maintain records of all accounts belonging to authorized sports bettors and retain such records of all transactions in such accounts for the preceding five years; provided however that such records belonging to an authorized sports bettor shall be readily accessible and downloadable, without cost, by such authorized sports bettor.

(h) The server or other equipment which is used by a mobile sports wagering licensee to accept mobile sports wagering shall be physically located in the licensed gaming facility and be limited to sports wagering related activities in accordance with regulations promulgated by the commission.

(i) All mobile sports wagering initiated in this state shall be deemed to take place at the licensed gaming facility where the server or other equipment used by a mobile sports wagering licensee to accept mobile sports wagering is located, regardless of the authorized sports bettor's physical location within this state.

(j) All mobile sports wagering shall be conducted in compliance with this section and section thirteen hundred sixty-seven of this title.

5. (a) Subject to regulations promulgated by the commission, a mobile sports wagering operator may allow for authorized bettors to sign up to create and fund accounts on its mobile sports wagering platform.

(b) Authorized sports bettors may deposit and withdraw funds to and from their account on a mobile sports wagering operator through electronically recognized payment methods, including but not limited to ~~[credit cards and] debit cards[,]~~ or via any other means approved by the commission~~[; provided however, that in the case of credit card payments, each authorized sports bettor's account per operator shall be limited to a credit card spending amount of two thousand five hundred dollars per year; and provided further, that this limitation shall not apply to other payment methods or to debit cards. No operator shall be authorized to provide a line of credit to any authorized sports bettor]~~.

§ 3. This act shall take effect immediately.